Case of Gary McKinnon

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Introduction

- Topic: Gary McKinnon - The Autistic Hacker
- Abstract: Between February 2001 and March 2002 McKinnon hacked into almost 100 NASA and United States Military PC’s while claiming to be searching for UFOs.
- Key issues raised: This case brought up the question of mental health, and better cybersecurity defenses(Kushner, 2011).

Who was Gary McKinnon?

- He was born in Glasgow Scotland, 1966.
- He taught himself how to code at age 14.
- Used a Atari computer to code video games with a outer space theme.
- He was deeply fascinated with space, and UFOs.
- He was always online going by the alias “Solo”.
- He was diagnosed with Asperger’s Syndrome in August of 2008(Kushner, 2011).

What did he do?

- Between February 2001 and March 2002 Mckinnon hacked into nearly 100 PC's within the Navy, Air Force, NASA, Army, and the Department of Defense.
- His inspiration was a book called "The Hacker's Handbook" a guide how to hack computers.
- In 2000 he chose to implement a plan to hack into computers to further his search for UFOs.
- Used Perl programming script to scan around 65,000 machines for passwords in under 8 minutes.
- Used a remote access program called RemotelyAnywhere which let him gain access to a computer from afar(Kushner, 2011).

Aftermath Damages

- McKinnon’s hack was considered “the biggest military computer hack of all time”.
- He also caused the US over $700 000 in damages.
- Around $5000 per machine he hacked.
- Also reported that he deleted around 1300 user accounts and systems files.
- Caused the US army's network in washington to go down for 3 days(U.S. Department of Justice, 2002).

In Gary’s Defense

- McKinnon claimed that UFOs were the cause of his hack.
- His goal was to expose and release the information he found for the benefit of humanity.
- In August of 2008 McKinnon was diagnosed with Asperger’s syndrome.
- People with Asperger’s syndrome were confirmed as highly intelligent.
- Along with people supporting him saying that he was a vulnerable man and not a dangerous cybercriminal(Kushner, 2011).

U.S. Action

- The US Department of Justice accused McKinnon of computer fraud and hacker related accounts.
- He was charged under the Computer Fraud and Abuse Act or CFAA.
- The US sent an extradition request to put him to trial.
- Prosecutors argued that his actions not covered by his Asperger's syndrome still put the US at national security.
- With all the allegations against him he would face a sentence of up to 70 years in prison(U.S. Department of Justice 2002).

Legal Battles

- McKinnon was in legal battles for over 10 years.
- The US government continuously fought to have him extradited to the US.
- European Court of Human rights along with Jacqui Smith (Home secretary) decided to decline the halt of the extradition process.
- Around 2009 the extradition order was still in effect(Laws, 2019).

Human Rights & Mental Health

- A psychologist by the name of Baron Cohen interviewed McKinnon and confirmed his Asperger's syndrome
- He noticed the McKinnon’s obsession with uncovering the truth about UFO’s(BBC News, 2012).
- Cohen came to the conclusion that if he was extradited that the risk of suicide would amplify.
- In 2012 Home Secretary Theresa May blocked the extradition entirely stating the risk of suicide and violation of human rights(Kushner, 2011).

Public Opinion

- McKinnons case received public opinion in the US and UK.
- Some viewed him as a capable individual who could handle punishment.
- Others saw him as a vulnerable individual who needed help instead of punishment.
- “Free Gary” websites, protests and campaigns for him arose.
- Popular public figures like the guitarist for Pink Floyd and Rock star David Gilmour voiced their support for him(Kushner, 2011).

Extradition

- McKinnon's extradition in 2005 was under a extradition treaty created after the attacks of september 11.
- Main motive of the treaty was to assist with suspected terrorists.
- His case lasted for almost a decade while navigating through UK courts and the European Court of Human Rights.
- The case also sparked political tension between the US and UK governments.
- The extradition was finally blocked in 2012(BBC News, 2012).

Lasting Impact

- McKinnon's case highlighted the concern for better extradition laws between the US and UK.
- Raised a ethical concern on mental health being used in cybercrime cases.
- Raised an overall awareness on Asperger’s syndrome and its impact on people's behavior and judgement.
- The case led people to examine the responsibilities of using the CFAA along with extradition policies.
- The case to this day is still seen as a heartfelt case with finding a balance between moral and immoral justice(Kushner, 2012).

What was learned?

- The case highlighted a stronger need for cybersecurity laws and better network protection.
- It promoted that mental health be checked and considered in cybercrime cases.
- It exposed flaws in the international treaties being used and mandated a safe and ethical application(U.S. Department of Justice, 2002).

Conclusion

- Gary McKinnon’s case remains one the most talked about hacking incidents to this day.
- Often sparking debate over mental health, cybercrime ethics and the moral justice presented.
- His story in itself is talked in the cyber world as a eye opener to the application of mental conditions and how can change legal opinions.
- McKinnon’s story serves as a standpoint for understanding human health, ethical laws, and moral justice(Kushner, 2011).

References

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